

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

1. JACINTA LASHAE BADELITA V. BOGDANEL BADELITA

22FL0797

On June 26, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging two counts of contempt. There is no Proof of Service for this document therefore the matter is dropped from calendar.

TENTATIVE RULING #1: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

2. JACOB CLARK V. NICHOLE ROEMER-CLARK

24FL0798

On June 23, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served on August 5, 2026.

Petitioner filed and served his Responsive Declaration to Request for Order on September 2, 2026.

Respondent filed and served her reply declaration on September 10th.

Petitioner filed and served a supplemental declaration on September 14th. The court finds this to be late filed and therefore it has not been read or considered by the court.

Respondent is requesting the following orders: (1) Respondent to have final decision-making authority limited to the implementation of the minor's counseling services; (2) Neither parent shall interfere with, cancel, discourage, or obstruct the minor's counseling appointments once scheduled; (3) School day exchanges shall occur at the minor's school, non-school-day exchanges to occur at Shingle Springs Park and Ride on Rock Barn Rd.; (4) Neither parent shall delay, modify, disrupt, or withhold parenting time because of disagreements regarding exchange logistics; (5) All non-emergency co-parenting communication shall occur through Talking Parents; (6) Communications regarding school deadlines, counseling, medical appointments, exchanges, or other time-sensitive matters shall receive a response within 24 hours, and routine communications to receive a response within 48 hours; (7) Each parent shall notify the other within 48 hours of the minor participating in any extracurricular activity, the notice to include the name of the activity, provider, location, dates, and times; and (8) The minor to be enrolled in a public transitional kindergarten program for the 2026-2027 school year with either Sutter's Mill Elementary, CMP Shingle Springs, or the minor's assigned neighborhood school.

Petitioner argues that the parties have already begun the process of enrolling the minor in therapy and he thus opposes Respondent's requests. He opposes the requests regarding exchanges and asks the court to maintain its prior order that exchanges occur in Cameron Park. He does not oppose a parenting application for communications but asks that the parties utilize Our Family Wizard, which they are already using. He opposes the requested changes regarding extracurricular activities and response deadlines for communications. Finally, Petitioner asks that the minor remain enrolled in Country Day for the 2026-2027 school year.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

First and foremost, given that the minor has already begun the school year at Country Day, and given the minor's young age, the court finds the best option is for the minor to complete the 2026-2027 school year at Country Day Montessori. This will help to ensure stability in her schedule for the time being.

Regarding exchanges, the court was clear in its prior orders that the parties were to select an exchange location in Cameron Park. In keeping with that order, all non-school-day exchanges shall occur at the public parking lot located at 3943 Cambridge Rd., Cameron Park, CA. All school-day exchanges shall occur at the minor's school.

The parties are ordered to use Our Family Wizard for communications regarding the minor. The court is not inclined to impose time limits for responses to communications as they do not appear to be necessary to further the best interests of the child; but instead only a preference of Respondent's at this point.

Turning to the issue of extracurricular activities, the parties have already been ordered to notify one another of extracurricular activities regarding the minor. The parties are admonished to abide by the court's prior order regarding all extracurricular activities. Notifications are to occur no later than 48 hours prior to the time for the activity.

Regarding therapy for the minor it appears the parties have already selected a therapist; however, out of an abundance of caution, if a therapist has not yet been selected the parties are to select one forthwith. Respondent is to give Petitioner the names of three therapists for the minor no later than September 24, 2026. Petitioner shall select one of the three and inform Respondent of his selection no later than October 1, 2026. If Petitioner does not inform Respondent of his selection by October 1st then Respondent shall have final decision-making authority to select a therapist from the list. Once a therapist is selected the parties are ordered to complete all necessary intake paperwork and to schedule the minor for the earliest available appointment. The parties are ordered to follow the treatment recommendations of the therapist including the duration and frequency of appointments. Neither parent shall interfere with, cancel, discourage, or obstruct the minor's counseling appointments once scheduled .

The parties are strongly admonished to comply with the court's prior orders regarding co-parenting counseling. Many of the issues raised in Respondent's moving papers are issues that should have been addressed amongst the parties in co-parenting counseling. The parties are ordered to select a co-parenting counselor and schedule the earliest available appointment forthwith. Respondent is to provide Petitioner the names of

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

three co-parenting counselors no later than September 24, 2026. Petitioner shall select one of the three and inform Respondent of his selection no later than October 1, 2026. If Petitioner does not inform Respondent of his selection by October 1st then Respondent shall have final decision-making authority to select a counselor from the list. Once a counselor is selected the parties are ordered to complete all necessary intake paperwork and to schedule the earliest available appointment. The parties are ordered to follow the treatment recommendations of the counselor including the duration and frequency of appointments.

All prior orders not in conflict with this order remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: THE MINOR IS TO COMPLETE THE 2026-2027 SCHOOL YEAR AT COUNTRY DAY MONTESSORI.

REGARDING EXCHANGES, ALL NON-SCHOOL-DAY EXCHANGES SHALL OCCUR AT THE PUBLIC PARKING LOT LOCATED AT 3943 CAMBRIDGE RD., CAMERON PARK, CA. ALL SCHOOL-DAY EXCHANGES SHALL OCCUR AT THE MINOR'S SCHOOL.

THE PARTIES ARE ORDERED TO USE OUR FAMILY WIZARD FOR COMMUNICATIONS REGARDING THE MINOR. THE COURT IS NOT INCLINED TO IMPOSE TIME LIMITS FOR RESPONSES TO COMMUNICATIONS.

TURNING TO THE ISSUE OF EXTRACURRICULAR ACTIVITIES, THE PARTIES HAVE ALREADY BEEN ORDERED TO NOTIFY ONE ANOTHER OF EXTRACURRICULAR ACTIVITIES REGARDING THE MINOR. THE PARTIES ARE ADMONISHED TO ABIDE BY THE COURT'S PRIOR ORDER REGARDING ALL EXTRACURRICULAR ACTIVITIES. NOTIFICATIONS ARE TO OCCUR NO LATER THAN 48 HOURS PRIOR TO THE TIME FOR THE ACTIVITY.

REGARDING THERAPY FOR THE MINOR IT APPEARS THE PARTIES HAVE ALREADY SELECTED A THERAPIST; HOWEVER, OUT OF AN ABUNDANCE OF CAUTION, IF A THERAPIST HAS NOT YET BEEN SELECTED THE PARTIES ARE TO SELECT ONE FORTHWITH. RESPONDENT IS TO GIVE PETITIONER THE NAMES OF THREE THERAPISTS FOR THE MINOR NO LATER THAN SEPTEMBER 24, 2026. PETITIONER SHALL SELECT ONE OF THE THREE AND INFORM RESPONDENT OF HIS SELECTION NO

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

LATER THAN OCTOBER 1, 2026. IF PETITIONER DOES NOT INFORM RESPONDENT OF HIS SELECTION BY OCTOBER 1ST THEN RESPONDENT SHALL HAVE FINAL DECISION-MAKING AUTHORITY TO SELECT A THERAPIST FROM THE LIST. ONCE A THERAPIST IS SELECTED THE PARTIES ARE ORDERED TO COMPLETE ALL NECESSARY INTAKE PAPERWORK AND TO SCHEDULE THE MINOR FOR THE EARLIEST AVAILABLE APPOINTMENT. THE PARTIES ARE ORDERED TO FOLLOW THE TREATMENT RECOMMENDATIONS OF THE THERAPIST INCLUDING THE DURATION AND FREQUENCY OF APPOINTMENTS. NEITHER PARENT SHALL INTERFERE WITH, CANCEL, DISCOURAGE, OR OBSTRUCT THE MINOR'S COUNSELING APPOINTMENTS ONCE SCHEDULED .

THE PARTIES ARE STRONGLY ADMONISHED TO COMPLY WITH THE COURT'S PRIOR ORDERS REGARDING CO-PARENTING COUNSELING. MANY OF THE ISSUES RAISED IN RESPONDENT'S MOVING PAPERS ARE ISSUES THAT SHOULD HAVE BEEN ADDRESSED AMONGST THE PARTIES IN CO-PARENTING COUNSELING. THE PARTIES ARE ORDERED TO SELECT A CO-PARENTING COUNSELOR AND SCHEDULE THE EARLIEST AVAILABLE APPOINTMENT FORTHWITH. RESPONDENT IS TO PROVIDE PETITIONER THE NAMES OF THREE CO-PARENTING COUNSELORS NO LATER THAN SEPTEMBER 24, 2026. PETITIONER SHALL SELECT ONE OF THE THREE AND INFORM RESPONDENT OF HIS SELECTION NO LATER THAN OCTOBER 1, 2026. IF PETITIONER DOES NOT INFORM RESPONDENT OF HIS SELECTION BY OCTOBER 1ST THEN RESPONDENT SHALL HAVE FINAL DECISION-MAKING AUTHORITY TO SELECT A COUNSELOR FROM THE LIST. ONCE A COUNSELOR IS SELECTED THE PARTIES ARE ORDERED TO COMPLETE ALL NECESSARY INTAKE PAPERWORK AND TO SCHEDULE THE EARLIEST AVAILABLE APPOINTMENT. THE PARTIES ARE ORDERED TO FOLLOW THE TREATMENT RECOMMENDATIONS OF THE COUNSELOR INCLUDING THE DURATION AND FREQUENCY OF APPOINTMENTS.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 17, 2026

8:30 AM/1:30 PM

BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

3. LAURA DAVIS V. DAVID DAVIS

PFL20080484

On July 14, 2026, Respondent filed a Request for Order (RFO) seeking spousal support and attorney's fees. He filed his Income and Expense Declaration concurrently therewith. All required documents were served by mail and personally served on Petitioner's attorney. However, because this is a post-judgment request, service was required to comply with Family Code § 215. He filed and served another Income and Expense Declaration on August 6th.

On August 31st, Respondent filed a Declaration of Callie B. Cambridge. It was electronically served the same day.

Despite the defect in service, Petitioner filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on September 3, 2026.

Respondent filed and served his reply declaration on September 9th.

Because Petitioner filed her responsive declaration, and because she did not object to the faulty service, the court finds good cause to reach this matter on its merits.

Because this is a post-judgment request to amend spousal support, the court is required to take evidence on and address the Family Code § 4320 factors. However, as a threshold issue to that, the moving party must show that there has been a material change in circumstances to warrant a change in support. In re Marriage of Kuppinger, 48 Cal. App. 3d 628 (1975).

Here, the court does find that Respondent has sufficiently established a change in circumstances given his recent retirement and corresponding drop in income. Accordingly, the parties are ordered to appear to select trial and mandatory settlement conference dates.

The request for attorney's fees is denied due to Respondent's failure to specify the amount of fees sought.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

THE REQUEST FOR ATTORNEY'S FEES IS DENIED DUE TO RESPONDENT'S FAILURE TO SPECIFY THE AMOUNT OF FEES SOUGHT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

5. COURTNEY GUBERT V. CASEY GUBERT

PFL20200248

On July 30, 2026, Respondent filed an Ex Parte Application and Declaration for Orders and Notice requesting custody and visitation orders. The court denied the requests ex parte but referred the parties to an emergency set Child Custody Recommending Counseling (CCRC) appointment and admonished Petitioner that monetary sanctions may be imposed for each exchange missed. A review hearing was set for the present date.

On August 27, 2026, Petitioner also filed an ex parte application seeking custody and visitation orders. The court declined to make any changes to custody orders but appointed Minor's Counsel and affirmed the review hearing date.

The parties attended CCRC on August 18th and were unable to reach any agreements. A report with recommendations was prepared and mailed to the parties on September 3, 2026.

Petitioner filed a Responsive Declaration to Request for Order on September 9th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made September 3rd the last day for filing Petitioner's responsive declaration. As such, the court has not read or considered it.

Respondent filed and served a supplemental declaration on September 9th. The court deems this to be a reply declaration and it is therefore, timely.

Minor's Counsel has not filed a declaration with the court.

Respondent is requesting temporary sole legal and physical custody of the minors. He requests an order for Petitioner to undergo a mental health evaluation with a licensed mental health provider and he asks that Petitioner's parenting time be supervised. He asks that the court adopt the recommendations of CCRC with specified modifications as set forth in his supplemental declaration.

Petitioner opposes the requests and instead asks that she be granted sole legal and sole physical custody of the children. She asks that the children be allowed to continue their current mental health treatment and participate in reunification therapy with

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

Respondent only when the children's treating therapists determine they are ready. She also asks for a suspension of unsupervised overnight visits between Respondent and the children. She requests an order for supervised visits only.

After reviewing the filings as outlined above, the court finds the recommendations contained in the September 3, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court with the following modifications. The Legal Custody section is amended to read as follows: "Respondent shall have sole legal custody of the children." Regarding the Parenting Time section of the CCRC report, the court is adopting Sections 1 and 3 therein. Respondent shall have sole physical custody of the children. Petitioner shall have non-professional supervised visits with an individual agreed upon by the parties twice per week for four hours per visit. The non-professional supervisor shall complete and file with the court an FL-324(NP) prior to supervising any visits. The section of the CCRC report labeled "communication between the parents" is amended to read as follows: "Mother and Father shall utilize Our Family Wizard to relay information to each other about the children's education, health, and general welfare. Our Family Wizard shall also be used to conduct telephone and video contact between either parent and the children."

In addition to the above, the parties are ordered to re-enroll the minors in Antelope Meadows Elementary School forthwith. If Antelope Meadows is unable to accommodate the re-enrollment then the children are to be enrolled in Dry Creek Joint Elementary School District. The court is adopting the terms of paragraphs 27 through 29 of Respondent's supplemental declaration to ensure that neither parent interferes with the children's education.

The court is reiterating its prior order appointing Minor's Counsel. The parties are ordered to facilitate Minor's Counsel's representation of the children and comply with any reasonable requests made by him.

Respondent's request for Petitioner to undergo a mental health evaluation is granted pursuant to Evidence Code § 730. Respondent shall provide Petitioner with the names of three evaluators no later than September 24, 2026. Petitioner shall select one of the evaluators and notify Respondent of her selection no later than October 1, 2026. If Petitioner does not provide her selection by that date then Respondent may select any one of the three. Respondent is to pay the entire cost of the evaluation, subject to reallocation.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

The court is setting a review hearing for Thursday, January 14th, 2027, at 8:30 am in Department 5 to address the status of 730 evaluation and to receive input from Minor's Counsel regarding the status of Petitioner's visits with the minors.

Finally, because the court is awarding Respondent primary physical custody of the children with only limited supervised visits to Petitioner, the court does not find that altering the holiday schedule for the 2027 year would be in the best interests of the children as it would only further disrupt their routine and contact with their mother. Moreover, given that Respondent is being awarded the majority of the time with the children the court does not find it necessary to award him make-up time as that would only serve to withhold the children from their mother during her weekly four hours of visitation.

All prior orders not in conflict with this order remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE SEPTEMBER 3, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS AND THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT WITH THE FOLLOWING MODIFICATIONS. THE LEGAL CUSTODY SECTION IS AMENDED TO READ AS FOLLOWS: "RESPONDENT SHALL HAVE SOLE LEGAL CUSTODY OF THE CHILDREN." REGARDING THE PARENTING TIME SECTION OF THE CCRC REPORT, THE COURT IS ADOPTING SECTIONS 1 AND 3 THEREIN. RESPONDENT SHALL HAVE SOLE PHYSICAL CUSTODY OF THE CHILDREN. PETITIONER SHALL HAVE UNPROFESSIONAL SUPERVISED VISITS WITH AN INDIVIDUAL AGREED UPON BY THE PARTIES TWICE PER WEEK FOR FOUR HOURS PER VISIT. THE NON-PROFESSIONAL SUPERVISOR SHALL COMPLETE AND FILE WITH THE COURT AN FL-324(NP) PRIOR TO SUPERVISING ANY VISITS. THE SECTION OF THE CCRC REPORT LABELED "COMMUNICATION BETWEEN THE PARENTS" IS AMENDED TO READ AS FOLLOWS: "MOTHER AND FATHER SHALL UTILIZE OUR FAMILY WIZARD TO RELAY INFORMATION TO EACH OTHER ABOUT THE CHILDREN'S EDUCATION, HEALTH, AND GENERAL WELFARE. OUR FAMILY WIZARD SHALL ALSO BE USED TO CONDUCT TELEPHONE AND VIDEO CONTACT BETWEEN EITHER PARENT AND THE CHILDREN."

IN ADDITION TO THE ABOVE, THE PARTIES ARE ORDERED TO RE-ENROLL THE CHILDREN IN ANTELOPE MEADOWS ELEMENTARY SCHOOL FORTHWITH. IF ANTELOPE

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

MEADOWS IS UNABLE TO ACCOMMODATE THE RE-ENROLLMENT THEN THE CHILDREN ARE TO BE ENROLLED IN DRY CREEK JOINT ELEMENTARY SCHOOL DISTRICT. THE COURT IS ADOPTING THE TERMS OF PARAGRAPHS 27 THROUGH 29 OF RESPONDENT'S SUPPLEMENTAL DECLARATION TO ENSURE THAT NEITHER PARENT INTERFERES WITH THE CHILDREN'S EDUCATION.

THE COURT IS REITERATING ITS PRIOR ORDER APPOINTING MINOR'S COUNSEL. THE PARTIES ARE ORDERED TO FACILITATE MINOR'S COUNSEL'S REPRESENTATION OF THE CHILDREN AND COMPLY WITH ANY REASONABLE REQUESTS MADE BY HIM.

RESPONDENT'S REQUEST FOR PETITIONER TO UNDERGO A MENTAL HEALTH EVALUATION IS GRANTED PURSUANT TO EVIDENCE CODE § 730. RESPONDENT SHALL PROVIDE PETITIONER WITH THE NAMES OF THREE EVALUATORS NO LATER THAN SEPTEMBER 24, 2026. PETITIONER SHALL SELECT ONE OF THE EVALUATORS AND NOTIFY RESPONDENT OF HER SELECTION NO LATER THAN OCTOBER 1, 2026. IF PETITIONER DOES NOT PROVIDE HER SELECTION BY THAT DATE THEN RESPONDENT MAY SELECT ANY ONE OF THE THREE. RESPONDENT IS TO PAY THE ENTIRE COST OF THE EVALUATION, SUBJECT TO REALLOCATION.

THE COURT IS SETTING A REVIEW HEARING FOR THURSDAY, JANUARY 14TH, 2027, AT 8:30 AM IN DEPARTMENT 5 TO ADDRESS THE STATUS OF 730 EVALUATION AND TO RECEIVE INPUT FROM MINOR'S COUNSEL REGARDING THE STATUS OF PETITIONER'S VISITS WITH THE MINORS.

FINALLY, RESPONDENT'S REQUEST FOR MAKE-UP TIME OVER THE 2027 HOLIDAYS IS DENIED.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 17, 2026

8:30 AM/1:30 PM

TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

6. JASON HARDOUIN V. JENAE NORELL

22FL0118

On March 17, 2026, the parties appeared before the court for a contempt hearing against Respondent. Ultimately, Respondent agreed to plead no-contest and receive a conditional sentence for 1 year to complete 120 hours of community service. The court accepted the plea deal and set a review hearing for the present date to assess Respondent's completion of the community service requirement.

There have been no filings since the March hearing date. The parties are ordered to appear for the hearing to update the court on the status of Respondent's community service hours.

TENTATIVE RULING #6: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING TO UPDATE THE COURT ON THE STATUS OF RESPONDENT'S COMMUNITY SERVICE HOURS.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

7. SCOTT DAVID RUSSELL V. OLIVIA ELENA RUSSELL

23FL0133

On June 24, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served by mail on July 7th and July 9th. Because this is a post-judgment request, Petitioner filed the requisite Declaration Regarding Address Verification in compliance with Family Code § 215. The Department of Child Support Services (DCSS) is a party to the action, however there is no Proof of Service for them.

The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 7, 2026. Neither party appeared at the appointment.

Respondent filed and served her Responsive Declaration to Request for Order on September 2nd.

This matter is dropped from calendar due to Petitioner's failure to serve all parties to the action and his failure to appear at the CCRC appointment which was set at his request.

TENTATIVE RULING #7: THIS MATTER IS DROPPED FROM CALENDAR DUE TO PETITIONER'S FAILURE TO SERVE ALL PARTIES TO THE ACTION AND HIS FAILURE TO APPEAR AT THE CCRC APPOINTMENT WHICH WAS SET AT HIS REQUEST.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

8. ESTEFANIA SIMMONS V. RONALD SIMMONS

25FL0176

Petitioner filed a Request for Order (RFO) on March 20, 2026 seeking to bifurcate the issue of marital status and restoration of her former name. She concurrently filed the requisite FL-315. All required documents were served by mail on September 9, 2026.

On February 19, 2026, Respondent filed an RFO seeking visitation orders, spousal support, and attorney's fees. On April 10th and April 23rd, Respondent filed two more RFOs seeking custody and visitation orders along with spousal support orders. He did not file an Income and Expense Declaration with any of the aforementioned and there is no Proof of Service for any of the RFOs or any of the other required documents. All three RFOs are therefore, dropped from calendar due to lack of proper service.

On June 30, 2026, the parties attended a hearing on competing restraining orders against one another. The court denied Respondent's request for a restraining order against Petitioner but granted Petitioner's request for one against Respondent. The court made custody and visitation orders and then set the matter for hearing on the issues of bifurcation, spousal support and attorney's fees pursuant to the pending RFOs.

Petitioner filed a declaration and her Income and Expense Declaration on July 27, 2026. There is no Proof of Service for these documents therefore they have not been read or considered. She filed and served another declaration on September 9, 2026.

As previously stated, the RFOs for support and attorney's fees have been dropped from calendar due to the lack of proper service. Moreover, they are dropped due to Respondent's failure to file the proper paperwork. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3). Additionally, the party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Respondent did not file an Income and Expense Declaration with any of his RFOs; and the most recent Income and Expense Declaration the court does have from Respondent is dated March 30, 2026. Because his Income and Expense Declaration was not timely filed and is not current, his requests for spousal support and attorney's fees are dropped from calendar.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

Regarding the request for bifurcation, a party may request bifurcation of the issue of marital status, however prior to doing so the party must ensure that “[a]ll pension plans that have not been divided by court order that require joinder ...” have been joined. Cal. Rule Ct. 5.390(d)(1). A party seeking bifurcation is to submit a completed FL-315. Cal. Rule Ct. 5.390(a).

Here, Petitioner has filed the requisite paperwork and it appears there are no retirement plans that require joinder. Accordingly, the court finds good cause to bifurcate the case and grant a separate trial on the issue of marital status only. The court orders parties to appear for the hearing on this issue.

TENTATIVE RULING #8: RESPONDENT’S FEBRUARY 19TH, APRIL 10TH, AND APRIL 23RD RFOS ARE DROPPED FROM CALENDAR FOR LACK OF PROPER SERVICE AND FOR FAILURE TO FILE A TIMELY AND UP-TO-DATE INCOME AND EXPENSE DECLARATION. THE COURT FINDS GOOD CAUSE TO GRANT THE BIFURCATION. THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON THIS ISSUE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

9. NICOLE THOMAS-FRANCIS V. MATHEW FRANCIS

PFL20180529

On July 14, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The RFO was originally filed ex parte and as such, the court made temporary orders, referred the parties to Child Custody Recommending Counseling (CCRC) and set a hearing on the regular law and motion calendar.

Respondent filed and served his Responsive Declaration to Request for Order on July 22nd.

The parties attended CCRC on August 4th but they were unable to reach any agreements. A report with recommendations was prepared on September 2nd and mailed to the parties on September 3rd.

On September 10, 2026, Petitioner filed and served a supplemental declaration.

Petitioner is requesting sole legal and sole physical custody of the minor pending completion of the Washington CPS investigation and any California CPS investigation. She asks that the court make any additional orders as necessary for the health, safety, and best interests of the minor. Finally, she asks the court to reserve her right to argue for attorney's fees pursuant to Family Code § 3020.

Respondent opposes Petitioner's requests and asks the court to award him sole legal and sole physical custody. He further asks that Petitioner be ordered to undergo a 730 evaluation. He is also requesting full disclosure of all medical and academic records of the minor, appointment of Minor's Counsel, an order for the parties to utilize Our Family Wizard and a no-contact order between Xander Julian Thomas and the minor.

First and foremost, the request for attorney's fees is denied without prejudice. Petitioner's reliance on Family Code § 3020 is misplaced as Section 3020 does not have a mechanism for attorney's fees. To the extent her request was based on Section 2030, the request is also denied. "[T]o request attorney's fees and costs, a party must complete, file and serve the following documents:...Request for Attorney's Fees and Costs Attachment (form FL-319) or a comparable declaration that addresses the factors covered in form FL-319...[and a] personal declaration in support of the request for attorney's fees and costs, either using Supporting Declaration for Attorney's Fees and Costs Attachment (form FL-158) or a comparable declaration that addresses the factors covered in form FL-158..." Cal. Rule of Ct. 5.427(b)(1). Petitioner has not filed either a form FL-319, an FL-158, or a declaration covering the necessary factors for the court to rule on a request for attorney's

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

fees. Additionally, the most recent Income and Expense Declaration the court has on file for Petitioner is from 2018. For these reasons, Petitioner's request for attorney's fees is denied without prejudice.

Turning to the custody and visitation orders, the court does find that it would be helpful to appoint Minor's Counsel in this matter. As such, Aaron Dosh is appointed as Minor's Counsel.

The request for a 730 evaluation is also granted. Respondent shall provide Petitioner with the names of three evaluators no later than September 24, 2026. Petitioner shall select one of the evaluators and notify Respondent of her selection no later than October 1, 2026. If Petitioner does not provide her selection by that date then Respondent may select any one of the three. Respondent shall bear the cost of the evaluation subject to reallocation.

The parties are ordered to utilize Our Family Wizard for all communications regarding the minor commencing forthwith.

Respondent's request for a no-contact order between Xander Julian Thomas and the minor is denied. Respondent has failed to provide any actual evidence to support his contention that such an order would be in the best interests of the minor.

The parties are re-referred to CCRC on Wednesday, November 25th at 9:00 am. Respondent is ordered to make the minor available to speak with CCRC.

A review hearing on this matter is set for Thursday, February 25th, 2027, at 8:30 am in Department 5 to update the court on the status of the 730 evaluation and to review the CCRC recommendations. Minor's Counsel is to file a declaration with the court regarding recommendations for custody moving forward. Any supplemental declarations filed by the parties are to be filed and served no later than 10 days prior to the hearing date.

All prior orders not in conflict with this order remain in full force and effect pending the review hearing.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #9: PETITIONER'S REQUEST FOR ATTORNEY'S FEES IS DENIED WITHOUT PREJUDICE.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

AARON DOSH IS APPOINTED AS MINOR'S COUNSEL.

THE REQUEST FOR A 730 EVALUATION IS ALSO GRANTED. RESPONDENT SHALL PROVIDE PETITIONER WITH THE NAMES OF THREE EVALUATORS NO LATER THAN SEPTEMBER 24, 2026. PETITIONER SHALL SELECT ONE OF THE EVALUATORS AND NOTIFY RESPONDENT OF HER SELECTION NO LATER THAN OCTOBER 1, 2026. IF PETITIONER DOES NOT PROVIDE HER SELECTION BY THAT DATE THEN RESPONDENT MAY SELECT ANY ONE OF THE THREE. RESPONDENT SHALL BEAR THE COST OF THE EVALUATION SUBJECT TO REALLOCATION.

THE PARTIES ARE ORDERED TO UTILIZE OUR FAMILY WIZARD FOR ALL COMMUNICATIONS REGARDING THE MINOR COMMENCING FORTHWITH.

RESPONDENT'S REQUEST FOR A NO-CONTACT ORDER BETWEEN XANDER JULIAN THOMAS AND THE MINOR IS DENIED.

THE PARTIES ARE RE-REFERRED TO CCRC ON WEDNESDAY, NOVEMBER 25TH AT 9:00 AM. RESPONDENT IS ORDERED TO MAKE THE MINOR AVAILABLE TO SPEAK WITH CCRC.

A REVIEW HEARING ON THIS MATTER IS SET FOR THURSDAY, FEBRUARY 25TH, 2027, AT 8:30 AM IN DEPARTMENT 5 TO UPDATE THE COURT ON THE STATUS OF THE 730 EVALUATION AND TO REVIEW THE CCRC RECOMMENDATIONS. MINOR'S COUNSEL IS TO FILE A DECLARATION WITH THE COURT REGARDING RECOMMENDATIONS FOR CUSTODY MOVING FORWARD. ANY SUPPLEMENTAL DECLARATIONS FILED BY THE PARTIES ARE TO BE FILED AND SERVED NO LATER THAN 10 DAYS PRIOR TO THE HEARING DATE.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT PENDING THE REVIEW HEARING.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 17, 2026

8:30 AM/1:30 PM

LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

10. MICHAEL BENJAMIN WOODARD V. AMBER LEIGH ASHLEY

25FL0885

On March 6, 2026, Respondent filed a Request for Order (RFO) requesting child and spousal support as well as Family Code § 2030 attorney's fees. The parties appeared for the hearing on April 16th at which time the parties reached agreements regarding support. The court adopted those agreements and set the matter for a review hearing on the present date. The court reserved jurisdiction over support back to May 1, 2026 and ordered both parties to file updated Income and Expense Declarations and supplemental declarations no later than 10 days prior to the hearing date.

Neither party has filed a supplemental declaration or an updated Income and Expense Declaration. Accordingly, the court infers that the review hearing is no longer needed and the matter is dropped from calendar.

TENTATIVE RULING #10: THIS MATTER IS DROPPED FROM CALENDAR.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

11. QUINN CRAYTHORN V. DALTON CRAYTHORN

26FL0248

Petitioner filed a Request for Order (RFO) on June 15, 2026, seeking child custody and parenting plan orders as well as child support orders. Petitioner did not concurrently file an Income and Expense Declaration. Proof of Service shows Respondent was personally served with the RFO, but not all the required documents.

Respondent filed a Responsive Declaration on June 23, 2026. There is no Proof of Service for this document, therefore, it has not been considered.

The court drops the matter from calendar due to the lack of proper service. All prior orders remain in full force and effect.

TENTATIVE RULING #11: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

12.SHAWNTEE FLEMING V. ANDRE FLEMING

22FL0216

Petitioner filed a Request for Order (RFO) on June 30, 2026, seeking a modification of permanent spousal support. Petitioner concurrently filed an Income and Expense Declaration. Respondent was personally served on July 27, 2026.

Respondent filed a Responsive Declaration and an Income and Expense Declaration on August 24, 2026. Both were served on August 21, 2026. Respondent opposes the request on the grounds that he was not properly served, Petitioner has failed to adequately set forth a significant change in circumstances, Petitioner is requesting guideline support, which is inappropriate post-judgment, and Petitioner's Income and Expense Declaration is incomplete.

The court drops the matter from calendar due to the lack of proper service.

All prior orders remain in full force and effect.

TENTATIVE RULING #12: THE COURT DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

13. SCOTT GAITHER JR V. JESSICA GEDDIS

PFL20210457

Respondent filed a Request for Order (RFO) on June 23, 2026, seeking child custody and parenting plan orders, as well as child support orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 31, 2026, and a review hearing on September 17, 2026. Proof of Service shows Petitioner was served with some of the required documents by mail. This is a post-judgment request for modification, and therefore, Family Code section 215 applies and Respondent was required to serve the documents personally or file an address verification form.

Both parties appeared at CCRC and reached a full agreement. A report with the parties' agreement was prepared on August 10, 2026. It was mailed to the parties the same day.

Petitioner has not filed a Responsive Declaration or an Income and Expense Declaration.

The court finds good cause to proceed with the custody and parenting plan portion of the RFO only, as both parties fully participated in CCRC and reached full agreements. The court finds the agreements of the parties to be in the best interest of the minor. The court adopts the agreements as set forth in August 10th CCRC report.

The court drops the request to modify child support from calendar due to the failure to properly serve Petitioner.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE CUSTODY AND PARENTING PLAN PORTION OF THE RFO ONLY, AS BOTH PARTIES FULLY PARTICIPATED IN CCRC AND REACHED FULL AGREEMENTS. THE COURT FINDS THE AGREEMENTS OF THE PARTIES TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AS SET FORTH IN AUGUST 10TH CCRC REPORT.

THE COURT DROPS THE REQUEST TO MODIFY CHILD SUPPORT FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE PETITIONER.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

14. TREVOR GREEN V. TIANNA SAUERS

22FL0923

Petitioner filed a Request for Order (RFO) on June 15, 2026, requesting child custody and parenting plan orders. The parties were not referred to Child Custody Recommending Counseling (CCRC). A review hearing was set for September 17, 2026.

Petitioner filed an ex parte application for emergency custody orders on June 24, 2026. On June 29, 2026, the court denied the request on an ex parte basis but did refer the parties to an emergency set CCRC appointment on August 12, 2026 and a review hearing on September 24, 2026. Petitioner filed an RFO on June 29th making the same requests as set forth in the ex parte application.

Petitioner filed a Proof of Service of Summons on June 30, 2026.

Parties filed a Stipulation, which the court adopted as its order on July 1, 2026, regarding custody and parenting plan orders.

Upon review of the court file, there are no Proofs of Service filed showing either RFO was served. The court drops the June 15th RFO from calendar. The court advances the review hearing set for September 24th and drops the hearing from calendar due to the failure to properly serve Respondent.

All prior orders remain in full force and effect.

TENTATIVE RULING #14: UPON REVIEW OF THE COURT FILE, THERE ARE NO PROOFS OF SERVICE FILED SHOWING EITHER RFO WAS SERVED. THE COURT DROPS THE JUNE 15TH RFO FROM CALENDAR. THE COURT ADVANCES THE REVIEW HEARING SET FOR SEPTEMBER 24TH AND DROPS THE HEARING FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE RESPONDENT. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

15. CARA LEVIN-DIAZ V. ISMAEL DIAZ

22FL0125

Petitioner filed a Request for Order (RFO) on June 22, 2026, seeking orders modifying the current parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 29, 2026, and a review hearing set for September 17, 2026. Respondent was personally served with some, but not all the required documents, on July 1, 2026.

Both parties appeared at CCRC and reached a full agreement. A copy of the agreement was prepared on July 29, 2026, and mailed to the parties on July 30th.

Respondent has not filed a Responsive Declaration.

The court finds good cause to proceed with the RFO as both parties appeared at CCRC, fully participated, and reached a full agreement. The court finds the agreement of the parties to be in the best interests of the minors. The court adopts the agreement as set forth in the July 29th CCRC report.

All prior orders not in conflict with these orders remain in full force and effect.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #15: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE RFO AS BOTH PARTIES APPEARED AT CCRC, FULLY PARTICIPATED, AND REACHED A FULL AGREEMENT. THE COURT FINDS THE AGREEMENT OF THE PARTIES TO BE IN THE BEST INTERESTS OF THE MINORS. THE COURT ADOPTS THE AGREEMENT AS SET FORTH IN THE JULY 29TH CCRC REPORT.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 17, 2026

8:30 AM/1:30 PM

TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

16. RICKEY LIMBRICK V. JEHOADDAN WILSON

26FL0558

Petitioner filed a Request for Order (RFO) seeking child custody and parenting plan orders on June 23, 2026, following the court's denial of his ex parte application for emergency orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 30, 2026, and a review hearing on September 17, 2026. Respondent was mail served some of the required documents.

Both parties appeared at CCRC and were unable to reach agreements. A report with recommendations was prepared on August 6, 2026. Copies were mailed to the parties on August 7, 2026.

Respondent has not filed a Responsive Declaration.

The court finds good cause to proceed as Respondent appeared at CCRC and fully participated. The court finds the recommendations as set forth in the August 6th CCRC report to be in the best interest of the minor. The court adopts the recommendations as set forth.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT FINDS GOOD CAUSE TO PROCEED AS RESPONDENT APPEARED AT CCRC AND FULL PARTICIPATED. THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE AUGUST 6TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 17, 2026

8:30 AM/1:30 PM

BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

17. ADRIANE MACE V. GREG MACE

26FL0593

Petitioner filed a Request for Order (RFO) on June 24, 2026, seeking temporary guideline spousal support. Petitioner concurrently filed an Income and Expense Declaration. Petitioner subsequently filed an amended Income and Expense Declaration on June 30, 2026. Petitioner filed a Proof of Service, showing personal service of some, but not all, the required documents on July 7, 2026. Petitioner subsequently filed an amended Proof of Service on August 6, 2026. The amended Proof of Service shows the amended Income and Expense Declaration, as well as all other required documents were personally served on July 7, 2026. Petitioner filed an amended RFO on August 6, 2026. It was mail served on August 7, 2026. In the amended RFO Petitioner is requesting temporary guideline spousal support as well as exclusive use and control of the former marital residence.

Respondent has not filed a Responsive Declaration or an Income and Expense Declaration.

The court has read and considered the filings as outlined above. The court denies the request for exclusive use and control of the former marital residence. Petitioner has failed to set forth any grounds upon which the relief may be granted.

As to the request for temporary guideline spousal support, the court notes Petitioner's amended Income and Expense Declaration is incomplete. As such, the request for temporary guideline spousal support is denied, as the amended Income and Expense declaration does not have the required documents attached and does not set forth Petitioner's income.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #17: THE COURT DENIES THE REQUEST FOR EXCLUSIVE USE AND CONTROL OF THE FORMER MARITAL RESIDENCE. PETITIONER HAS FAILED TO SET FORTH ANY GROUNDS UPON WHICH THE RELIEF MAY BE GRANTED.

AS TO THE REQUEST FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT, THE COURT NOTES PETITIONER'S AMENDED INCOME AND EXPENSE DECLARATION IS INCOMPLETE. AS SUCH, THE REQUEST FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT IS DENIED, AS THE AMENDED INCOME AND EXPENSE DECLARATION DOES

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

NOT HAVE THE REQUIRED DOCUMENTS ATTACHED AND DOES NOT SET FORTH PETITIONER'S INCOME.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

18. NATHANIEL MARTELLE V. DARUIS MARTELLE

24FL0993

Respondent filed a Request for Order (RFO) on July 14, 2026, seeking a change in venue from El Dorado County to Alameda County. Petitioner was served by mail on July 20, 2026. Respondent asserts Alameda County is more convenient due to physical disability as well as a history of domestic violence between the parties.

Petitioner filed a Responsive Declaration on July 28, 2026. It was mail served on Respondent the same day. Petitioner argues El Dorado County is the appropriate venue, as the parties resided in the county together until July of 2026. Petitioner further asserts Respondent may appear remotely, thereby alleviating the need for travel.

Pursuant to Civil Procedure Section 397, the court may, upon a properly noticed motion, transfer any matter where the court designated in the complaint is not the proper court. Cal. Civ. Pro. § 397(a). The burden is on the moving party to establish grounds for a change of venue. *Fontaine v. Sup. Ct.*, 175 Cal. App. 4th 830 (2009). The court has reviewed the filings in this matter and finds El Dorado County is the appropriate venue. Additionally, there is a future hearing already set in El Dorado County, and as such, transfer would not be proper while that hearing is pending. Therefore, Respondent's request is denied.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: RESPONDENT'S REQUEST TO TRANSFER VENUE FROM EL DORADO COUNTY TO ALAMEDA COUNTY IS DENIED AS EL DORADO COUNTY IS THE APPROPRIATE VENUE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 17, 2026

8:30 AM/1:30 PM

BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

19. KYRA MCAFFEE V. MAXWELL MCAFFEE (JOINED PARTY: BRIAN AND CORRINE BUNCH) PFL20210499

Joined Parties filed an Order to Chow Cause and Affidavit for Contempt on January 12, 2026. Petitioner and Respondent were properly served. Parties appeared on March 19, 2026 for the initial arraignment. The court appointed the office of the Public Defender to Petitioner, subject to their review and determination of eligibility.

Parties appeared on June 11, 2026, for further arraignment. The office of the Public Defender declared an overwork conflict; as such, they were thanked and relieved. The Alternate Public Defender's Office was subsequently appointed. Counsel then requested the matter be continued. The court granted the request to continue.

Upon review of the court file, the court notes the parties are scheduled to appear for a hearing on September 24, 2026, at 1:30 PM. For judicial economy, the court continues this matter to join with the hearing set for September 24, 2026, at 1:30 PM in Department 5.

All prior orders remain in full force and effect. Joined Parties are directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #19: FOR JUDICIAL ECONOMY, THE COURT CONTINUES THIS MATTER TO JOIN WITH THE HEARING SET FOR SEPTEMBER 24, 2026, AT 1:30 PM IN DEPARTMENT 5. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. JOINED PARTIES ARE DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

20. CODY RICHARDSON V. JENNIFER DAVIS

PFL20210489

Respondent filed a Request for Order (RFO) on May 22, 2026, requesting modification of child custody orders as well as an order to re-enroll the minor in Sierra School. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 10, 2026, and a review hearing on September 17th. Petitioner was served on May 27, 2026.

Petitioner filed an RFO to change venue from El Dorado County to Butte County on May 26, 2026. There is no Proof of Service for this document.

Respondent filed a request to reschedule the hearing on Petitioner's RFO on June 17, 2026. The court granted the request and directed Petitioner to properly serve Respondent with the RFO.

Both parties and the minor participated in CCRC. The parties were unable to reach any agreements. A report with recommendations was prepared on August 12, 2026, and mailed to the parties on August 13th.

Respondent filed a Responsive Declaration to Petitioner's RFO on August 31, 2026. Respondent objects to the court considering the RFO as she has still not been properly served.

Respondent filed a Reply Declaration to the CCRC report on September 3, 2026. It was served the same day. Respondent asserts there are internal inconsistencies in the CCRC report regarding the parenting plan. Respondent asserts the narrative portion of the report is correct setting forth that Petitioner shall exercise parenting time the 1st, 3rd, and 5th weekends of the month during the school year. Respondent requests the parties continue to utilize Talking Parents as the communication platform.

Petitioner has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the August 12th CCRC report to be in the best interest of the minor with the following modifications. Petitioner shall have parenting time on the 1st, 3rd, and 5th weekends, with the times as set forth. The parties shall continue to utilize the Talking Parents application for all communication regarding the minor. All other recommendations are adopted as set forth.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

Petitioner's RFO is dropped from calendar due to the failure to properly serve Respondent.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #20: THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE AUGUST 12TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR WITH THE FOLLOWING MODIFICATIONS. PETITIONER SHALL HAVE PARENTING TIME ON THE 1ST, 3RD, AND 5TH WEEKENDS, WITH THE TIMES AS SET FORTH. THE PARTIES SHALL CONTINUE TO UTILIZE THE TALKING PARENTS APPLICATION FOR ALL COMMUNICATION REGARDING THE MINOR. ALL OTHER RECOMMENDATIONS ARE ADOPTED AS SET FORTH.

PETITIONER'S RFO IS DROPPED FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE RESPONDENT.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

21. YESENIA JUAREZ TORRES V. FRANCISCO TAPIA ESCALANTE

26FL0591

Petitioner filed a Request for Order (RFO) on June 24, 2026, seeking child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 6, 2026, and a review hearing on September 17, 2026.

Petitioner filed an Application for Posting on June 24, 2026. The court granted the request the same day. There is no Proof of Service showing the posting was completed. There has been no service of the petition and summons on Respondent. As such, the court does not have jurisdiction to make orders.

Neither party appeared at the CCRC appointment.

The court drops the matter from calendar due to the lack of jurisdiction, lack of proper service of the RFO, and the failure to appear at CCRC.

TENTATIVE RULING #21: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF JURISDICTION, LACK OF PROPER SERVICE OF THE RFO, AND THE FAILURE TO APPEAR AT CCRC.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

22. KAYLA TRUJILLO V. GUNNER SEXTON

25FL0153

Petitioner filed a Request for Order (RFO) on June 16, 2026, seeking conduct orders for co-parenting. Respondent was served with some, but not all the required documents on June 18, 2026. Petitioner requests the court make orders regarding communication between the parties as well as orders regarding reimbursements and parameters for the right of first refusal.

Respondent filed a Responsive Declaration on August 20, 2026. It was served on August 23, 2026. Respondent does not raise the defect in service, therefore, the court deems it to be waived. Respondent does not believe the conduct orders are necessary.

Petitioner filed a Reply Declaration on August 27, 2026. It was served on August 28, 2026. Petitioner reiterates the request for conduct orders.

The court has read and considered the filings as outlined above. The court finds that most, if not all, of the requested orders are already standing orders of the court. The court admonishes both parties to reflect on their behaviors. The court notes the Respect Guidelines that the court adopted as its orders on August 21, 2025. The court reiterates those orders.

Respect Guidelines:

1. Both parents shall exert every effort to maintain free access and unhampered contact between the children and the other parent and shall foster a feeling of affection between them and the other parent. Neither parent shall do anything to estrange children from the other parent, nor impair the natural development of their love and respect for the other parent.
2. Each parent shall respect the other's right to privacy during his or her parenting time with the children.
3. Neither parent shall make disparaging remarks about the other in the children's presence or within earshot.
4. Neither parent shall make disparaging remarks about extended family, relatives, friends, or significant others in children's presence or within earshot.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

5. Parents shall ensure that extended family, relatives, friends, or significant others do not make disparaging remarks about the parents in the children's presence or within earshot.
6. Neither parent shall harass, stalk, or threaten the other, extended family, relatives, friends, or significant others on social media. Parents shall ensure that extended family, relatives, friends, or significant others do not harass, stalk, or threaten the parents on social media.
7. Neither parent shall discuss custody issues with the children.
8. Parents shall ensure that third parties do not discuss custody issues with the children.
9. Neither parent shall ask the children to carry messages between them.
10. Parents shall discuss entertainment activities that interfere with the other parents' parenting time before discussing the activity with the children.
11. Neither parent shall direct threats, insults, or foul language towards the children.
12. Neither parent shall do anything that causes the children to feel guilt when:
 - a. Thinking about the other parent;
 - b. Communicating with the other parent via phone, text, email, or in person;
 - c. Discussing appreciation or concern for the other parent;
 - d. Writing cards or letters to the other parent;
 - e. Making gifts for the other parent;
 - f. Wanting to keep a picture of either parent or a gift made/given to them by either parent in their bedroom;
 - g. Or any other sign or symbolic gesture that endears the children to either parent.

Likewise, the orders for the right of first refusal were adopted on August 21, 2025, imposing a 10-hour requirement of parental unavailability which excludes employment.

The court reiterates the joint legal custody parameters.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

Joint Legal Custody:

1. Mother and Father will have joint legal custody of the children.
2. In exercising joint legal custody, Mother and Father will share in the responsibility and discuss in good faith matters concerning the health, education, and welfare of the children. The parents must discuss and consent in making decisions on the following matters:
 - a. Enrollment or disenrollment in a private or public school or daycare center.
 - b. Beginning or ending of psychiatric, psychological, or other mental health counseling or therapy.
 - c. Participation in extracurricular activities.
 - d. Selection of a doctor, dentist, or other health professionals (except in emergency situations).
 - e. Participation in religious activities or institutions.
 - f. Out-of-country or out-of-state travel
3. If a parent does not obtain the consent of the other parent to the items identified in #2, then:
 - a. He or she may be subject to civil or criminal penalties.
 - b. The court may change the legal and physical custody of the minor children.
4. Special decision making designation and access to children's records:
 - a. Both the custodial and noncustodial parent have the right to access records and information about their minor children (including medical, dental, and school records) and consult with professionals who are providing services to the children.
5. Health-care notification:
 - a. Each parent must notify the other of the name and address of each health practitioner who examines or treats the children; such notification must be made within 24 hours of the first treatment or examination.
 - b. Each parent is authorized to take all actions necessary to protect the health and welfare of the children, including but not limited to consent to emergency surgical procedures or treatment. The parent authorizing such

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

September 17, 2026

8:30 AM/1:30 PM

emergency treatment must notify the other parent as soon as possible of the emergency and of all procedures or treatment administered to the children.

c. Mother and Father are required to administer any prescribed medications for the children.

6. School notification

a. Each parent will be designated as a person the children's school will contact in the event of an emergency.

7. Name

a. Neither Mother nor Father will change CHILD'S or THE CHILDREN'S surname or have a different name used on the children's medical, school, or other records without the written consent of the other parent.

As to the reimbursable expenses, the parties are to agree to any non-emergency expense prior to the expenses being incurred. The agreements shall be in writing utilizing the co-parenting application. The parties are to follow the guidelines as set forth in the attached FL-192.

All communication between the parties shall be brief and respectful.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #22: THE COURT FINDS THE MOST, IF NOT ALL THE REQUESTED ORDERS ARE ALREADY STANDING ORDERS OF THE COURT. THE COURT ADMONISHES BOTH PARTIES TO REFLECT ON THEIR BEHAVIORS. THE COURT NOTES THE RESPECT GUIDELINES THAT THE COURT ADOPTED AS ITS ORDERS ON AUGUST 21, 2025. THE COURT REITERATES THOSE ORDERS. LIKEWISE, THE ORDERS FOR THE RIGHT OF FIRST REFUSAL WERE ADOPTED ON AUGUST 21, 2025, IMPOSING A 10-HOUR REQUIREMENT OF PARENTAL UNAVAILABILITY WHICH EXCLUDES EMPLOYMENT. THE COURT REITERATES THE JOINT LEGAL CUSTODY PARAMETERS. AS TO THE REIMBURSABLE EXPENSES, THE PARTIES ARE TO AGREE TO ANY NON-EMERGENCY EXPENSE PRIOR TO THE EXPENSES BEING INCURRED. THE AGREEMENTS SHALL BE IN WRITING UTILIZING THE CO-PARENTING APPLICATION. THE PARTIES ARE TO FOLLOW THE GUIDELINES AS SET FORTH IN THE ATTACHED FL-192. ALL COMMUNICATION BETWEEN THE PARTIES SHALL BE BRIEF AND RESPECTFUL. ALL PRIOR ORDERS NOT IN

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

NOTICE OF RIGHTS AND RESPONSIBILITIES REGARDING CHILD SUPPORT

Childcare and Health Care Costs and Reimbursement Procedures

Your child support order may include a provision for payment of childcare or uninsured health care costs. Childcare costs may be included as part of the monthly child support payment or reimbursable as a percentage of the costs. If the childcare costs are included as part of the monthly child support payment, you must pay that amount each month until the court changes (modifies) the child support order. If you need to change your child support order because there has been a change in the cost of childcare, see page 2.

If you have a child support order that includes a provision for the reimbursement of a percentage of childcare costs or a portion of the child's or children's health care costs and those costs are not paid by insurance, the **law says**:

1. **Notice.** You must give the other parent an itemized statement of the charges that have been billed for any childcare costs or health care costs not paid by insurance. You must give this statement to the other parent within a reasonable time, but no more than 90 days after those costs were given to you.
2. **Proof of full payment.** If you have already paid all of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid them and (2) ask for reimbursement for the other parent's court-ordered share of those costs.
3. **Proof of partial payment.** If you have paid only your share of the childcare costs or uninsured health care costs, you must (1) give the other parent proof that you paid your share, (2) ask that the other parent pay his or her share of the costs directly to the childcare or health care provider, and (3) give the other parent the information necessary for that parent to be able to pay the bill.
4. **Payment by notified parent.** If you receive notice from a parent that a childcare or uninsured health care cost has been incurred, you must pay your share of that cost within the time the court orders; or if the court has not specified a period of time, you must make payment (1) within 30 days from the time you were given notice of the amount due, (2) according to any payment schedule set by the health care provider, (3) according to a schedule agreed to in writing by you and the other parent, or (4) according to a schedule adopted by the court.
5. **Going to court.** Sometimes parents get into disagreements about childcare and health care costs. If you and the other parent cannot resolve the situation after talking about it, you can request that the court make a decision.
- a. **Disputed requests for payment.** If you dispute a request for payment made by the other parent, you may file a request for the court to resolve the dispute, but only if you pay the requested amount before filing your request.
- b. **Nonpayment.** If you claim that the other parent has failed to pay you back for a payment, or they have failed to make a payment to the provider after proper notice, you may file a request for the court to resolve the dispute.
- c. **Paid charges.** The court will presume that if uninsured health care costs or childcare costs for employment or necessary training for job skills have been paid, those costs were reasonable. If you want to dispute paid charges, you will have to show the court that the costs were unreasonable.
- d. **Attorney's fees.** If the court decides one parent has been unreasonable, it can order that parent to pay the other parent's attorney's fees and costs.
- e. **Court forms.** Use forms [FL-300](#) and [FL-490](#) to get a court date. See form [FL-300-INFO](#) for information about completing, filing, and serving your court papers.
6. **Court-ordered insurance coverage.** If a parent provides health care insurance as ordered by the court, that insurance must be used at all times to the extent that it is available for health care costs.
- a. **Burden to prove.** The parent claiming that the coverage is inadequate to meet the child's needs has the burden of proving that to the court.
- b. **Cost of additional coverage.** If a parent purchases health care insurance in addition to that ordered by the court, that parent must pay all the costs of the additional coverage. In addition, if a parent uses alternative coverage that costs more than the coverage provided by court order, that parent must pay the difference.
7. **Preferred health providers.** If the court-ordered coverage designates a preferred health care provider, that provider must be used at all times consistent with the terms of the health insurance policy. When any parent uses a health care provider other than the preferred provider, any health care costs that would have been paid by the preferred health provider if that provider had been used must be the sole responsibility of the parent incurring those costs.
8. **Need help?** Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information Sheet on Changing a Child Support Order

General Info

The court has made a child support order in your case. This order will remain the same unless one of the parents requests that the support be changed (modified). An order for child support can be modified by filing a request to change child support and serving the other parent. If both parents agree on a new child support amount, they can complete, sign, and file with the court a *Stipulation to Establish or Modify Child Support and Order* (form [FL-350](#)). (**Note:** If the local child support agency is involved in your case, it must be served with any request to change child support and approve any agreement.)

Online Self-Help Guide

For more information about how child support works, visit: <https://selfhelp.courts.ca.gov/child-support>.

When a Child Support Order May Be Changed

The court considers several things when ordering the payment of child support.

- First, the number of children is considered, along with the percentage of time each parent has physical custody of the children.
- Next, the net disposable incomes of both parents are determined (which is how much money is left each month after taxes and certain other items like health insurance, union dues, or other child support ordered and paid are subtracted from a parent's paycheck). The court can also look at a parent's earning ability.
- The court considers both parents' tax filing status and may consider hardships, such as the cost of raising the parent's child from another relationship who lives with the parent.

A parent can request to change an existing order for child support when circumstances change significantly. For example if the net disposable income of one of the parents changes, parenting time changes, or a new child is born.

Examples

- You have been ordered to pay \$500 per month in child support. You lose your job. You will continue to owe \$500 per month, plus 10 percent interest on any unpaid support, unless you file a motion to modify your child support to a lower amount and the court orders a reduction.
- You are currently receiving \$300 per month in child support from the other parent, whose net income has just increased substantially. You will continue to receive \$300 per month unless you file a motion to modify your child support to a higher amount and the court orders an increase.
- You are paying child support based on having physical custody of your children 30 percent of the time. After several months it turns out that you actually have physical custody of the children 50 percent of the time. You may file a motion to modify child support to a lower amount.

How to Change a Child Support Order

To change a child support order, you must file papers with the court. *Remember:* You must follow the order you have now.

What forms do I need?

If you are asking to change a child support order, you must fill out one of these forms:

- Form [FL-300](#), *Request for Order* **or**
- Form [FL-390](#), *Notice of Motion and Motion for Simplified Modification of Order for Child, Spousal, or Family Support*

You must also fill out one of these forms, and attach proof of income for the past two months (like your paycheck stubs):

- Form [FL-150](#), *Income and Expense Declaration* **or**
- Form [FL-155](#), *Financial Statement (Simplified)*

What if I am not sure which forms to fill out?

Contact the family law facilitator in your county. You can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

After you fill out the forms, file them with the court clerk and ask for a hearing date. Write the hearing date on the form.

The clerk may ask you to pay a filing fee. If you cannot afford the fee, fill out these forms, too:

- Form [FW-001](#), *Request to Waive Court Fees* **and**
- Form [FW-003](#), *Order on Court Fee Waiver (Superior Court)*

You must serve the other parent. If the local child support agency is involved, serve it too.

- This means someone 18 or over—not you—must deliver copies of your filed court forms to the other parent, at least **16 court days** before the hearing. Add **5 calendar days** if delivered by mail within California (see Code of Civil Procedure section 1005 for other situations).
- **Court days** are weekdays when the court is open for business (Monday through Friday except court holidays). **Calendar days** include all days of the month, including weekends and holidays. To find court holidays, go to: www.courts.ca.gov/holidays.htm.

Blank copies of both of these forms must also be served:

- Form [FL-320](#), *Responsive Declaration to Request for Order*
- Form [FL-150](#), *Income and Expense Declaration*

Then the server fills out and signs a *Proof of Service*. Take this form, plus one copy, to the clerk and file it at least one week before your hearing.

Go to your hearing and ask the judge to change the support. Bring your tax returns from the last two years and your proof of income for the past two months (like your paycheck stubs). The judge will look at your information, listen to both parents, and make an order. After the hearing, fill out:

- Form [FL-340](#), *Findings and Order After Hearing* **and**
- Form [FL-342](#), *Child Support Information and Order Attachment*

Need help?

Contact the family law facilitator in your county or call your county's bar association and ask for an experienced family lawyer.

Information About Child Support for Incarcerated or Confined Parents

1. Child support. As of September 27, 2022, child support automatically stops if the parent who has to pay is confined against their will for more than 90 days in a row in jail, prison, juvenile detention, a mental health facility, or other institution.

Exception. Child support does not automatically stop if the parent who has to pay has money available to pay child support.

2. Past confinement. Child support also automatically stops during past confinement if it was ordered from October 8, 2015, through December 31, 2019, or January 1, 2021, through September 26, 2022, and the parent who has to pay was confined for more than 90 days in a row during the same time frame.

Exceptions for past confinement. Child support does not automatically stop if the parent who has to pay was in jail or prison for failing to pay child support or for domestic violence against the other parent or the child, or if they had money available to pay support.

3. Timing. The date child support automatically restarts will depend on the parent's release date. If you need to change your child support order, see page 2.

- a. **If released before January 1, 2024,** child support automatically restarts the first day of the first full month after the parent is released.
- b. **If released after January 1, 2024,** child support will automatically restart the first day of the 10th month after the parent is released.

Employment before the 10-month period ends: If the parent who has to pay support starts working before the date child support is set to automatically restart, the person who is owed support or the local child support agency can request the court restart the child support order early. The court may order a different amount of child support if appropriate.

4. More info. For more information about child support and incarcerated parents, see Family Code section 4007.5 or go to <https://selfhelp.courts.ca.gov/child-support/incarcerated-parent>. You can also contact the family law facilitator in your county and can find them here: www.courts.ca.gov/selfhelp-facilitators.htm.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

23. KEVIN WENTWORTH V. CHEYENNE FULLER

25FL1247

Respondent filed a Request for Order (RFO) on July 24, 2026, seeking child custody and parenting plan orders as well as a variety of other orders. There is no Proof of Service showing Petitioner was properly served.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #23: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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